

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: July 18, 2024

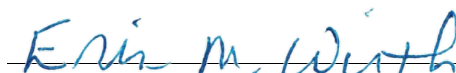
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER GRANTING MOTION TO EXTEND TIME TO REPLY

On July 17, 2024, Respondents filed a motion to extend the time for them to reply to Complainant's motion objecting to confidential treatment of certain documents ("Reply Ext. Motion"). The confidential documents at issue are related to Complainant's motion to file an amended complaint. In addition, a joint motion to extend expert and other deadlines is pending and the parties emailed a request to provide an update on their discovery activities and deposition taking/scheduling.

The reply extension is requested as parties "have been focused on the taking and defending of numerous depositions in this proceeding." Reply Ext. Motion at 1. The motion states that Complainant has consented to the requested extension. The requested extension is short and good cause is stated. Therefore, the motion to extend the time to reply to Complainant's motion objecting to confidential treatment of certain documents is **GRANTED**. The reply should be filed by July 22, 2024.

Once the reply is filed, the undersigned will have the filings needed to resolve the motion to extend deadlines, motion to file an amended complaint under seal, and motion for confidential treatment. In an abundance of caution, depositions currently being conducted should include any questions related to the amended complaint so that the deponents would not need to be deposed again if the amended complaint is granted. In addition, any motions related to the amended complaint will occur concurrently with the discovery schedule and will not be a basis to alter the discovery schedule. Any additional updates regarding discovery activities, including the deposition schedule, should be provided as a supplement to the joint motion to extend deadlines and must be filed by July 22, 2024.


Erin M. Wirth
Chief Administrative Law Judge